

**BEFORE THE
FEDERAL MARITIME COMMISSION**

LOGFRET, INC.,

Complainant,

v.

KIRSHA, B.V.,

Leendert Johannes BERGWERFF a/k/a HANS BERGWERFF,

LINDA SIEVAL,

Respondents.

Docket No. 18-10

MOTION TO AMEND COMPLAINT

Complainant Logfret, Inc. hereby respectfully submits this Motion requesting Your Honor's leave for Complainant to amend its Complaint in the above-captioned matter, in accordance with Rules 66 and 69 of the FMC Rules of Practice and Procedure (46 C.F.R. §§ 502.66 and 502.69).

On January 29, 2019, Complainant requested a seven-day extension to respond to Respondents' pending Motion to Dismiss. On January 30, 2019, Your Honor granted a motion to extend the time to respond to Respondents' motion to dismiss, until February 7, 2019. Complainant subsequently learned additional information regarding the facts and circumstances surrounding the allegations in the Complaint, such that Complainant believes justice would be best served by way of a verified amendment of the original Complaint.

In light of Complainant's pending deadline with respect to Respondents' Motion to Dismiss, Complainant is concurrently submitting a Motion to Request Extension of Time to File Complainant's Response to said motion.

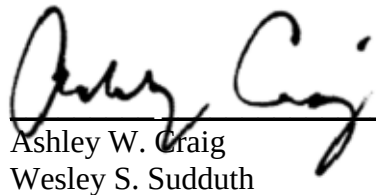
Counsel for Complainant conferred with Respondents' Counsel on February 6, 2019 pursuant to 46 CFR §502.71(a), and Respondents' Counsel objects to the requested amendment of the Complaint.

CONCLUSION

For the foregoing reasons, Complainant respectfully requests that Your Honor grant this Motion to Amend Complaint.

Dated: February 7, 2019

Respectfully submitted,



Ashley W. Craig
Wesley S. Sudduth

Venable LLP
600 Massachusetts Avenue, NW,
Washington, DC 20001

Counsel for Complainant

CERTIFICATE OF SERVICE

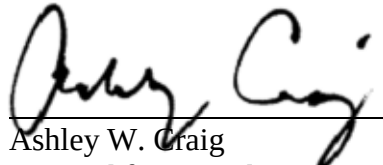
I hereby certify that I have this day served the foregoing document upon all parties noted below by mailing via electronic mail a copy to each such person:

Carlos Rodriguez, Esq.
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Counsel for Respondents

Dated at Washington, D.C. this 7th day of February 2019.



Ashley W. Craig
Counsel for Complainant